

CoS Act & rules (Excerpts)

The Collection of Statistics Act, 2008 (7 of 2009) was enacted by the Parliament on 7 January, 2009. It was published in the Official Gazette for general information on 9 January 2009. The Act was brought into force on 11 June 2010 through another Notification. The rules under the Act, namely, the Collection of Statistics Rules, 2011 have been notified on 16 May 2011. A corrigendum on the rules was notified on 8 September 2011.

The Act is intended to facilitate the collection of statistics on economic, demographic, social, scientific and environmental aspects by Government at all levels(i.e three tier of government), and for matters connected therewith or incidental thereto.

- What are the constitutional provisions under which the enactment has been made?

The subject 'Statistics' is covered in the Seventh Schedule of the Constitution of India (as applicable to the whole of India other than the State of Jammu and Kashmir), in the following entries. · Entry 94 of the Union List (List – I): Inquiries, Surveys and Statistics for the purpose of any of the matters in this List · Entry 45 of Concurrent List (List – III): Inquiries and Statistics for the purpose of any of the matters in List II or List III · The subject is not covered under the State List (List – II). The enactment has been made under the aforesaid provisions.

- Who will decide the subject of data collection?

The appropriate Government, meaning thereby, (i) any Ministry or Department in the Central Government; or (ii) any Ministry or Department in a State Government or Union territory Administration; or (iii) any local government, namely, a Panchayat or a Municipality, will decide the subject for data collection in their respective jurisdictions.

- How the public would come to know about the decision of Government to collect any statistics?

The Act provides for notifying the decision of Government to collect any statistics in the official gazette. Besides, the matter may be publicized through media. Every notification under section 3 of the Act shall contain the following particulars, namely: - (a) subject and purpose for collection of statistics; (b) geographical area for collection of statistics; (c) method of data collection; (d) nature of informants from whom data may be

collected; (e) period during which collection of statistics may be completed; (f) reference period; (g) nature of information to be collected; (h) language in which information is to be furnished by informant; (i) obligation of informant; (j) nature of business records and other records which may be inspected; and (k) the manner of inspection. A copy of every notification under section 3 shall be forwarded to the nodal officer of the Central Government and the nodal officer of the State concerned.

- How the data is collected?

Data could be collected through a statistical survey (census or a sample survey) or otherwise (i) by interviewing persons or (ii) by leaving a format to be filled up by them or (iii) by issuing a notice asking them to furnish information in the prescribed format within the time period specified in the notice or (iv) through tele fax or telephone or e-mail or in any other electronic mode or (v) in a combination of different modes. Statistics Officer has the power to decide the mode of collecting data. The data collectors authorised in writing by statistics officers may enter any premises at any reasonable time for data collection and also inspect any record/ document for the purpose.

- From whom data is collected?

Data would be collected from any informant, who could be any person, who supplies or is required to supply statistical information and includes a owner or occupier or person in-charge or his authorised representative in respect of persons of a partnership firm or a co-operative society or a company or a society or any association recognised or registered under any law for the time being in force.

- What are the informants expected to do?

Data would be collected from any informant, who could be any person, who supplies or is required to supply statistical information and includes a owner or occupier or person in-charge or his authorised representative in respect of persons of a partnership firm or a co-operative society or a company or a society or any association recognised or registered under any law for the time being in force. [Sections 2 (c) and 5 of the Act] The informants shall be bound to furnish information in the prescribed manner to the best of their knowledge or belief. There could be cases where information would be sought from selected persons because of any sampling procedure. In such cases, the selected persons will not have a defence in failure to furnish information sought because such information has not been sought from others. The informants shall also

allow entry to the data collectors authorised in writing by statistics officers in to their premises and also furnish the required records/ documents for inspection. Every informant shall, on demand, produce or give a copy of any books of accounts, vouchers, documents, or other business records or personal records or documents in his possession relevant to collection of statistics under the Act to any statistics officer or any person authorised by him in writing and carrying a photo-identity card issued by him, and the statistics officer or the authorised person, as the case may be, may take a copy or extract of such record or document. The head of every family shall be responsible to furnish or cause to furnish the correct details of name and number of members, other particulars, records and documents, as may be required, of the family of which he is the head including dependants. In so far as inmates of institutions, such as orphanages, old age homes, and mental asylums are concerned, the responsibility for providing or causing to provide the requisite details, records and documents shall lie with the head of the Institution.

- How is the right of entry to premises of any informant going to be exercised?

A statistics officer or any person authorised by him in writing and carrying a photo-identity card issued by the statistics officer, shall, during the period of collection of statistics for the purpose of collection of statistics under the Act or for inspection and examination of records, and documents in connection with it, during 10.00 hrs to 17.00 hrs on any day or at a time mutually convenient to both the parties have the right to enter the premises of any informant in the portion of the premises normally entered by visitors or guests or as suggested by the informant.

- What are the offences for which any information could be punished and what are the penalties?

Offence	Penalty
1. Failure to produce any books of accounts, vouchers, documents, or other business records	Punishable with a fine which may extend to one thousand rupees or, in the case of a company, with a fine which may extend to five thousand rupees [Section 15 (1)]
2. Neglecting or refusing to fill in and supply the particulars required in any information schedule or return given or sent to him	- do -
3. Neglecting or refusing to answer any question or inquiry addressed to him	- do -
4. Failure to give the required particulars or continue to neglect or refuse to fill in and supply the particulars or, to answer the question or inquiry, after the expiry of fourteen days from the date of conviction	Punishable with a further fine which may extend to one thousand rupees or, in the case of a company, with a fine which may extend to five thousand rupees, for each day after the first during which the failure continues. [Section 15 (2)]
5. Making any false or misleading statement or material omission in any information schedule or return filled in or supplied, or in answer to any question asked to him	Punishable with simple imprisonment for a term which may extend to six months or with a fine which may extend to one thousand rupees or, in the case of a company, with a fine which may extend to five thousand rupees or with both [Section 16]
6. Destroying, defacing, removing, or mutilating any information schedule, form, or other document containing particulars collected or requesting any such particulars	Punishable with simple imprisonment for a term which may extend to six months or with a fine which may extend to two thousand rupees or, in the case of a company with a fine which may extend to ten thousand rupees or with both [Section 17]

- Many Government Departments have been conducting statistical surveys on a non-statutory basis. Is it necessary for them to conduct their surveys under the Act and if so, what are the advantages?

It is true that many data collection programmes in the Government setup are conducted on a non-statutory basis, wherein the response from informants has been voluntary. The disadvantages with such exercises are: - (a) Some of the informants may refuse to furnish information or furnish wrong information or furnish partial/ lukewarm/ delayed responses. In such situations, the data collection machinery would be helpless and the concerned Government Department shall be satisfied with whatever data is collected, irrespective of its quality. (b) Even if informants would be willing to furnish true information, an apprehension that such information might be used by the concerned Government Department against them either for taxation or other purposes could be weighing in their mind against furnishing true information. (c) In the absence of any legal restriction on a data collection organisation that personal and sensitive

information collected from informants shall not be disclosed in a manner that reveals their identity, some of the informants may tend to refuse furnishing information. The Collection of Statistics Act, 2008 addresses all the aforesaid problems and hence, it would be advisable to all Government Departments to conduct their statistical surveys etc., under the provisions of the Act.

- What can be done to promote statistical potential of administrative statistics?
Administrative statistics are statistics that could be generated as a by-product of administration in the Government. The nodal officer would be guiding Government Departments etc., on this matter. For example, if there are any statutory returns containing names and addresses of business enterprises along with some statistical data, then the nodal officer may request the concerned Department to keep an up-to-date list of business enterprises along with addresses as also statistical information of the enterprises compiled at the desired level of aggregation. The information compiled may be used by other Departments for planning and policy formulation. The list of enterprises could be used by them to collect any other information from the enterprises.
- In what manner in which unnecessary duplication could be avoided?
If Government Departments maintain administrative statistics and other statistical information obtained by them up-to-date and share them with other Departments, then there would be clarity in the system as to what information is available and what is not available. This knowledge is essential to avoid unnecessary duplication.